Privacy Policy — Appraisers of America Inc.

Privacy Policy

Appraisers of America Inc. · commercialappraiserfl.com

Effective Date: May 8, 2026 **Last Updated:** May 8, 2026

> **Important legal disclaimer for Web Premiere / José Moreno:** This Privacy Policy is written to be comprehensive and to give Appraisers of America Inc. strong protection across federal and Florida law. **It is not legal advice.** Before publishing on the live site, the client should have it reviewed by a Florida-licensed attorney who handles real estate or financial services privacy matters. Adjustments may be needed based on specific business practices (CRM, call recording vendor, email tools, third-party integrations). The policy is drafted assuming standard practices for a commercial real estate appraisal firm.

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1. Who We Are

This Privacy Policy describes how **Appraisers of America Inc.** ("Appraisers of America," "we," "us," or "our") collects, uses, and protects information when you:

- Visit **commercialappraiserfl.com** or any related subdomain (the "Site")
- Submit a quote request, contact form, or sample-report request
- Call our offices at (407) 894-0201 (Orlando) or (786) 449-4885 (Miami)
- Engage us for a commercial real estate appraisal or related service

We are a Florida corporation with offices in Orlando and Miami. Our principal appraiser is **Jorge V. Canellas**, State Certified General Real Estate Appraiser, license number **RZ3108**.

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2. Information We Collect

2.1 Information You Provide Directly

When you fill out our quote form, contact form, request a sample report, call us, or email us, you may provide:

- Full name
- Phone number
- Email address
- Property address
- Property type (office, retail, industrial, hotel, multifamily, land, etc.)
- Reason for the appraisal (SBA loan, refinance, divorce, estate, tax appeal, sale or purchase, internal valuation, litigation, etc.)
- Timeline expectations
- Company or business affiliation (for institutional clients)
- Any other details you choose to share in messages or supporting documents

2.2 Information Required to Perform the Appraisal

If you engage us for an appraisal, we may collect or receive additional documents and data needed to complete the work, including:

- Rent rolls
- Lease agreements
- Operating financial statements (income and expenses)
- Property tax records
- Prior appraisal reports
- Site plans, surveys, and floor plans
- Insurance policies (for replacement-cost work)
- Loan documents
- Photographs taken by us during inspection
- Recorded measurements and notes

This information is necessary to produce a USPAP-compliant report. Some of this data is considered **non-public personal financial information** under the Gramm-Leach-Bliley Act ("GLBA"), and we treat it accordingly (see Section 6).

2.3 Information Collected Automatically

When you visit the Site, we and our service providers collect:

- IP address and approximate location (city/region level, used to personalize the landing experience)
- Device type, operating system, browser type and version
- Pages visited, time on page, referring URL, click paths
- Search terms (when you arrive from a search engine)
- Form interaction events (started, abandoned, completed)
- Phone-click events (when you tap a phone number on mobile)
- Cookie identifiers (see Section 8 — Cookies)

This is collected via:

- **Google Analytics 4 (GA4)** — usage statistics
- **Google Tag Manager (GTM)** — tag deployment
- **Google Ads** — conversion tracking for paid search and Performance Max campaigns
- **Cloudflare** — CDN, security, and approximate geolocation
- **Server logs** — basic request data

2.4 Information from Third Parties

We may receive information about you from:

- Lenders or banks who engage us on your behalf for a loan transaction
- Attorneys, CPAs, or other professionals who refer you to us
- Public records (county property appraiser data, MLS, CoStar, Florida Department of State, etc.) used in the course of producing your appraisal
- Google, when you find us through a search ad or organic listing

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3. How We Use Your Information

We use the information we collect to:

1. **Respond to your quote request** and contact you about your project
2. **Perform the appraisal** you have engaged us for
3. **Produce, deliver, and explain** the appraisal report to the appropriate parties
4. **Maintain workfile records** as required by USPAP and Florida appraisal regulations (typically 5 years from the date of the report, or longer if litigation is pending)
5. **Communicate with you** about your project, follow-up questions, and post-delivery clarifications
6. **Improve our website and services** through usage analytics
7. **Run paid advertising** on Google and other platforms to reach potential clients
8. **Comply with our legal, regulatory, and professional obligations**, including USPAP, FIRREA, SBA, IRS, and Florida Real Estate Appraisal Board requirements
9. **Defend our rights** in any dispute, audit, or legal proceeding

We do **not** sell your personal information. We do **not** rent your contact information to third parties for their marketing.

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4. How We Share Your Information

We share information only in the situations below.

4.1 With the Party Who Ordered the Appraisal

In a commercial real estate appraisal, the **client** is the party who hired and pays us. This is typically:

- The **lender** (bank, credit union, or SBA-certified lender) on a loan transaction
- The **borrower** on a cash deal, divorce, estate, partnership dispute, or tax appeal
- An **attorney**, **CPA**, or **financial planner** acting on behalf of their client

The completed report is the property of, and is delivered to, the client. We will not deliver a copy of the report to other parties unless the client authorizes us in writing.

If you are the **borrower** but the **lender** ordered the appraisal, the lender (not us) controls whether you receive a copy. This is a USPAP requirement.

4.2 With Our Subcontractors and Staff

We may share information with appraisers, trainees, and support staff working on your project, including team members who appear in our public reviews (such as Sarah, Victor, and others). All staff and subcontractors are bound by confidentiality obligations consistent with USPAP, GLBA, and Florida law.

4.3 With Service Providers

We share limited information with vendors that help us run our business, such as:

- **Hosting and content delivery** (Cloudflare, GitHub, Replit, Vercel, or similar)
- **Form processing** (Formspree, Web3Forms, or similar)
- **Email and CRM** (Google Workspace, or our internal CRM)
- **Analytics and advertising** (Google Analytics, Google Ads, Google Tag Manager)
- **Phone systems and call tracking** (if applicable)
- **Document storage** (Google Drive, Dropbox, or similar — encrypted at rest)
- **Payment processing** (we do not store credit card numbers; payment is handled by our processor)

These service providers receive only the data they need to perform their service for us, and are contractually obligated to protect it.

4.4 For Legal and Regulatory Reasons

We may disclose information when required to do so by:

- A subpoena, court order, or other legal process
- A regulator with jurisdiction (Florida Real Estate Appraisal Board, IRS, SBA, FBI, Attorney General, etc.)
- An investigation into fraud, money laundering, or other crimes
- An audit by the Appraisal Subcommittee or other oversight body

We will, when legally permitted, notify you before disclosing your information in response to a subpoena or court order.

4.5 In Connection with a Business Transfer

If Appraisers of America is sold, merged, or acquires/disposes of substantial assets, your information may be transferred to the successor entity. We will notify you and ensure the new entity honors this Privacy Policy.

4.6 With Your Consent

We may share information for any other purpose with your express consent.

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5. Your Privacy Rights

5.1 All Users — Access, Correction, Deletion

You may, at any time, contact us to:

- **Access** the personal information we hold about you
- **Correct** inaccuracies in your information
- **Delete** your information, subject to our legal and professional retention obligations (see Section 7)
- **Opt out** of marketing communications

To exercise any of these rights, email us at the address in Section 12 or call our offices.

5.2 California Residents — CCPA / CPRA

If you are a California resident, you have additional rights under the California Consumer Privacy Act (as amended by the California Privacy Rights Act), including:

- The right to know what personal information we have collected about you and how we use and share it
- The right to delete personal information we have collected (with limited exceptions for legal retention)
- The right to correct inaccurate personal information
- The right to opt out of the sale or sharing of personal information for cross-context behavioral advertising
- The right to limit the use of sensitive personal information
- The right to be free from discrimination for exercising your rights

We do not sell personal information. We do use Google Analytics and Google Ads, which may constitute “sharing” under the CPRA. You can opt out by:

- Adjusting cookie preferences (when our cookie banner is active)
- Using the Global Privacy Control (GPC) signal in your browser
- Emailing us with your request

To submit a CCPA/CPRA request, email **info@commercialappraiserfl.com** with the subject line "California Privacy Request" and include your name, the address you provided, and the request type.

5.3 Florida Residents — Florida Information Protection Act

We comply with the **Florida Information Protection Act (FIPA)**, Fla. Stat. § 501.171, which requires us to:

- Take reasonable measures to protect personal information
- Notify affected individuals and the Florida Department of Legal Affairs in the event of a breach affecting more than 500 Florida residents within 30 days
- Properly dispose of records containing personal information

5.4 European Economic Area, United Kingdom, and Switzerland

If you access the Site from the EEA, UK, or Switzerland, we process your personal data based on:

- **Consent** (when you submit a form)
- **Contractual necessity** (to perform the appraisal you've engaged us for)
- **Legitimate interest** (to operate and improve our website and services)
- **Legal obligation** (to comply with USPAP, FIRREA, tax law, etc.)

You have the right to access, correct, delete, restrict, or object to processing of your personal data, and the right to data portability and to lodge a complaint with your local data protection authority.

We rely on **Standard Contractual Clauses** for any transfers of EU personal data to the United States.

5.5 Children's Privacy

Our services are intended for adults engaged in commercial real estate transactions. We do not knowingly collect personal information from children under 13. If you believe a child has provided us personal information, please contact us at **info@commercialappraiserfl.com** and we will delete it.

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6. How We Protect Your Information

We treat the financial information you provide for an appraisal as **non-public personal information** subject to the Gramm-Leach-Bliley Act ("GLBA") Safeguards Rule.

6.1 Safeguards in Place

- **Encryption in transit** — TLS 1.2+ on all forms and email
- **Encryption at rest** — for stored documents in our cloud providers
- **Access controls** — only staff working on your project access your information
- **Confidentiality obligations** — all staff and contractors sign confidentiality agreements
- **Secure document delivery** — final reports delivered via password-protected PDFs or encrypted file transfer
- **Workfile retention** — kept securely for the period required by USPAP and Florida law (typically 5 years from report date or 2 years after final court action, whichever is later)
- **Secure disposal** — records are securely deleted or shredded at end of retention

6.2 No Method Is 100% Secure

While we use commercially reasonable measures, no transmission over the internet or electronic storage is 100% secure. We cannot guarantee absolute security but we will respond promptly to any suspected breach as required by FIPA and other applicable law.

6.3 Breach Notification

In the event of a security breach affecting your personal information, we will:

1. Investigate the scope and impact
2. Take steps to contain and remediate
3. Notify you in writing without unreasonable delay (and within 30 days for Florida residents under FIPA)
4. Notify regulators as required by applicable law

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7. How Long We Keep Your Information

Category	Retention period
Quote-form submissions that did not become engagements	Up to 24 months, then deleted
Email and call records of prospective clients	Up to 24 months
Engaged-client appraisal workfiles (USPAP)	5 years from report date, or 2 years after final court resolution, whichever is later
Final appraisal reports delivered	5 years minimum, often retained longer for repeat-client reference
Payment and tax records	7 years (IRS requirement)
Marketing email lists (with consent)	Until you unsubscribe
Website analytics data (Google Analytics)	14 months (default), or as configured
Server logs and security logs	30 to 90 days, then aggregated or deleted

You may request earlier deletion of marketing data, but we cannot delete records that are required to be retained by USPAP, FIRREA, IRS, or applicable law during the retention period.

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8. Cookies and Similar Technologies

8.1 What We Use

The Site uses cookies and similar technologies for:

- **Strictly necessary cookies** — required for the Site to function (load balancing, security)
- **Analytics cookies** — Google Analytics 4, to understand how visitors use the Site
- **Advertising cookies** — Google Ads conversion pixels, to measure the effectiveness of ads and (where applicable) retarget visitors
- **Geolocation** — Cloudflare provides approximate location to personalize the landing page (city/region only, not precise GPS)

We do **not** use cookies to track you across unrelated websites for behavioral advertising beyond what Google Ads provides.

8.2 Your Cookie Choices

You can control cookies by:

- Adjusting your browser settings (most browsers allow blocking or deleting cookies)
- Using the cookie banner on the Site (when active) to opt out of non-essential cookies
- Using browser-level Global Privacy Control (GPC) signal — we honor it
- Opting out of Google Analytics: **https://tools.google.com/dlpage/gaoptout**
- Opting out of personalized Google Ads: **https://adssettings.google.com**

Disabling cookies may affect Site functionality.

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9. Third-Party Links

The Site may contain links to third-party websites such as:

- Google Business Profile (to view our reviews)
- Federal or state agency sites (SBA, USPAP, IRS, Florida DBPR)
- Banks, credit unions, or attorneys we work with

We are not responsible for the privacy practices or content of those sites. Read their privacy policies before submitting any information.

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10. Marketing Communications and Phone / SMS

10.1 Email Marketing

If you subscribe to our updates or are an existing client, we may send occasional emails about our services, market insights, or company news. Each email contains an unsubscribe link, in compliance with the **CAN-SPAM Act**.

10.2 Phone Calls and Text Messages (TCPA)

If you provide your phone number on our Site or to our staff, you consent to receive phone calls and text messages from us regarding your inquiry, your appraisal, or service updates. We comply with the **Telephone Consumer Protection Act (TCPA)** and Florida's Telephone Solicitation Act.

You may opt out of marketing texts at any time by replying STOP. Service-related communications about an active appraisal engagement may still be necessary even if you opt out of marketing.

10.3 Call Recording

We may record incoming or outgoing phone calls for quality assurance and training. Florida is a **two-party consent state** for call recording, so we will inform you at the start of the call if it is being recorded.

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11. Confidentiality of Appraisal Reports and Client Information

Under **USPAP Confidentiality Rule** (Ethics Rule), we are required to:

- Protect the confidentiality of “confidential information” you provide to us
- Not disclose confidential information or assignment results to anyone other than the client, parties specifically authorized by the client, state appraiser regulatory agencies, third parties as required by law, and a duly authorized professional peer review committee — and only as required

This duty applies independently of, and in addition to, the protections in this Privacy Policy.

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12. Contact Us

If you have questions, concerns, or requests about this Privacy Policy or our data practices:

Appraisers of America Inc. Attn: Privacy Officer Email: **info@commercialappraiserfl.com** Phone: **(407) 894-0201** (Orlando) or **(786) 449-4885** (Miami)

For California Privacy Requests, use the subject line **“California Privacy Request”**. For Florida Information Protection Act requests, use the subject line **“FIPA Request”**. For GDPR / UK GDPR requests, use the subject line **“EU Data Subject Request”**.

We will respond within the time periods required by applicable law (typically 30-45 days).

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13. Changes to This Policy

We may update this Privacy Policy from time to time. Material changes will be communicated by:

- Updating the “Last Updated” date at the top
- Posting a notice on the Site for at least 30 days
- For active clients, sending an email notification when changes affect your data

Your continued use of the Site after the effective date of changes constitutes acceptance of the updated policy.

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14. Governing Law and Dispute Resolution

This Privacy Policy is governed by the laws of the **State of Florida** and applicable federal law of the United States.

Any dispute arising from or relating to this Privacy Policy or our handling of your personal information shall be resolved in the state or federal courts located in **Orange County, Florida**, and you consent to the personal jurisdiction of those courts.

If any provision of this Privacy Policy is held unenforceable, the remaining provisions remain in full force and effect.

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15. Specific Notices and Disclosures

15.1 GLBA Privacy Notice

For clients engaging us in connection with a federally-related real estate transaction, this Privacy Policy serves as our **GLBA Privacy Notice** under Title V, Subtitle A of the Gramm-Leach-Bliley Act. Specifically:

- We collect non-public personal financial information from you, your lender, public records, and our work product
- We use this information solely to perform the appraisal services you have engaged us for, and as permitted or required by law
- We do not share this information with affiliates for marketing purposes
- We do not share this information with non-affiliated third parties except as described in Section 4 (with your client/lender, service providers under confidentiality, legal/regulatory disclosure, business transfers, and with your consent)
- Therefore, you have **no right to opt out** under GLBA because we do not engage in the type of sharing that triggers an opt-out

15.2 Notice to Lender Clients

If you are a federally-regulated lender engaging us, we are familiar with and comply with applicable interagency appraisal and evaluation guidelines, FIRREA Title XI, and the Dodd-Frank Wall Street Reform and Consumer Protection Act. We maintain appraiser independence as required by law and will not be influenced by anyone with a financial interest in the loan transaction.

15.3 Notice for Litigation Engagements

If you engage us for divorce, probate, partnership dispute, eminent domain, or other litigation, you understand that:

- The report and underlying workfile may be subject to discovery in litigation
- We cannot guarantee that information you provide will remain confidential if a court orders disclosure
- We may be required to testify and disclose our methodology and conclusions in court
- Our duty as an independent expert overrides any expectation that we will advocate for your position

We follow USPAP requirements for advocacy work and do not act as an advocate for any party.

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16. Acknowledgment

By using the Site or engaging Appraisers of America Inc. for services, you acknowledge that you have read, understood, and agree to be bound by this Privacy Policy.

Appraisers of America Inc. Florida Real Estate Appraiser License **RZ3108** (Jorge V. Canellas) Orlando · Miami · All 67 Florida Counties **commercialappraiserfl.com**